

All three motions are asserted collectively against all the defendants. The first cause of action alleges that the defendants, “each of them, had a duty to exercise reasonable care in operating a motor vehicle, including but not limited to keeping a proper lookout for other vehicles; maintaining an appropriate speed under the circumstances; keeping their eyes on the road; controlling the speed and movement of their vehicle; and driving with due regard for the safety of all persons using the road.” (FAC, ¶ 18.) It is alleged that each of the defendants “failed to use reasonable care in operating, owning, driving, maintaining, entrusting, managing, controlling, or inspecting the SUBJECT VEHICLE such that their failure to use reasonable care caused the SUBJECT INCIDENT and the resulting injuries, harm, or damages alleged in this Complaint.” (FAC, ¶ 21.) It is alleged that all the defendants negligently entrusted or allowed Decedent to drive the vehicle. (FAC, ¶¶ 26 and 27.) It is alleged that all the defendants’ negligence caused injuries to Plaintiff. (FAC, ¶ 28.)

The second cause of action alleges that each of the defendants knew that Decedent was incompetent/unfit, all the defendants owned/leased/maintained/controlled the vehicle Decedent drove, and defendants’ conduct caused Plaintiffs’ injuries. (FAC, ¶¶ 30-36.) The loss of consortium cause of action alleges that due to the defendants’ conduct, Edward Yingling was injured. (FAC, ¶ 42.) There are no allegations in the FAC that liability is being sought against Youngren because no probate was open and no trust claim procedure was initiated. Only direct liability appears to be sought against Youngren for the trust’s alleged negligence. Due to this, Plaintiffs’ arguments in opposition regarding the basis of Youngren’s liability cannot be considered.

Youngren provides a declaration that no one on behalf of the trust was a driver, operator, or passenger of the vehicle involved in the accident. (Declaration of Jennifer Youngre, ¶¶ 3 and 4.) She provides that no one on behalf of the trust had information or knowledge about a malfunction or defect of the vehicle involved in the accident. (Id. at ¶ 6.) She states that the other defendants and Decedent were not an agent, servant, partner, or employee of the trust. (Id. at ¶¶ 7-11.) She declares that the vehicle driven by Decedent was not owned, controlled, used, rented, sold, designed, maintained, repaired, built, manufactured, leased, entrusted by, managed, or inspected by the trust. (Id. at ¶¶ 16-26.) Based on this evidence, it appears that Youngren has established that there was no duty or breach of duty by the trust, as alleged by the FAC. Due to this, Youngren has met her initial burden. Plaintiffs have failed to provide any evidence to give rise to a triable issue of material fact. Plaintiffs have asserted objections to Youngren’s declaration. However, their objections to the evidence discussed above, lacks merit. Due to this, the motion is denied.

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CASE #	CASE NAME	HEARING NAME
CVSW2402566	CITY OF TEMECULA VS HASKELL	MOTION FOR ORDER TO SHOW CAUSE RE: CONTEMPT

Tentative Ruling: Set for hearing AS IT IS NOT CLEAR WHETHER Defendant City is requesting contempt CRIMINAL OR CIVIL PROCEEDING.